

Parties to appear.

Each of Defendant's notices of motion fails to give notice of the court's tentative ruling system as required by Local Rule 3.9(d).

It is unclear to the court whether Claimant's Fifth Amendment issues have been resolved. It appears that F25-00225 is still pending.

DIAS v. GENERAL MOTORS, LLC
Case No. CU24-04621

Motion by Plaintiff for Attorney's Fees

TENTATIVE RULING

GM failed to file a timely noticed motion to strike or tax costs. The challenges raised in the opposition papers to costs are not considered.

As to the claim for attorneys' fees, Plaintiff seeks \$23,402.50. There was little to no litigation of this file. Although moving papers claim discovery motions were filed, no discovery motion appears in the court's file. It is difficult to reconcile counsel's representations of these efforts given these facts. Three case management conferences were held where counsel appeared remotely. The complaint is largely cookie cutter, as evidenced by erroneous references to BMW OF NORTH AMERICA, but does include specific information related to Plaintiff's individual claim. The matter is not complex.

The rate for attorneys ranging from \$350 to \$525 per hour is reasonable and consistent with Solano County rates for similar levels of experience. The rate of \$150 per hour for paralegals or legal secretaries assisting counsel is reasonable. The rate of \$250 for support staff is not reasonable and is inconsistent with Solano County rates.

A notice of conditional settlement was filed 9/25/25.

The court disallows hours associated to motions to compel discovery responses which were never actually filed despite counsel's representation to the contrary. MZ hours are reduced by 2.1. JLA hours are reduced by 5.5. The balance of the hours appear reasonable.

Based upon the above, the court awards all costs claimed of \$1,423.76. The court additionally awards attorneys' fees in the sum of \$18,732.50 for a total fees and costs award of \$20,156.26.

TASHA LO PORTO et al. v. CITY OF VALLEJO et al.
Case No. CU25-09509

VALLEJO's Demurrer to First Amended Complaint

TENTATIVE RULING

Defendant CITY OF VALLEJO (“VALLEJO”) demurs to Plaintiffs TASHA LO PORTO (“LO PORTO”), JUSTIN ALLEN (“JUSTIN”), and JASPER ALLEN’s (“JASPER”) first amended complaint relevantly alleging causes of action for dangerous condition of public property, negligence per se, and loss of consortium. All claims stem from a motor vehicle collision wherein Defendant GERALD COWART (“COWART”) allegedly struck LO PORTO with his vehicle while she was pushing her son JASPER in a stroller across a crosswalk. Plaintiffs allege that COWART was given a green light to turn at the same time LO PORTO was given a “walk” signal to cross the street. Plaintiffs further allege that overgrown foliage obscured visibility at the intersection. JUSTIN is LO PORTO’s husband and brings the claim for loss of consortium.

Requests for Judicial Notice. Matters subject to judicial notice may support a demurrer under Code of Civil Procedure section 430.30, subdivision (a). VALLEJO requests judicial notice under Evidence Code section 452, subdivision (c) of two Google Street View images of the subject intersection, one from November 2024 and the other from March 2021, and two photographs police officers took while investigating the incident underlying the operative complaint. These items are not appropriate subjects of judicial notice. They are not public records admissible under Evidence Code section 452, subdivision (c).

Legal Standard on Demurrer. “The function of a demurrer is to test the sufficiency of the complaint as a matter of law.” (*Holiday Matinee, Inc. v. Rambus, Inc.* (2004) 118 Cal.App.4th 1413, 1420.) A complaint is sufficient if it alleges ultimate rather than evidentiary facts, but the plaintiff must set forth the essential facts of his or her case “with reasonable precision and with particularity sufficient to acquaint [the] defendant with the nature, source and extent” of the plaintiff’s claim. (*Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1099.) Legal conclusions are insufficient. (*Id.* at 1098–1099; *Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 551, fn. 5 [ultimate facts sufficient].) The court “assume[s] the truth of the allegations in the complaint, but do[es] not assume the truth of contentions, deductions, or conclusions of law.” (*California Logistics, Inc. v. State of California* (2008) 161 Cal.App.4th 242, 247.) The court also assumes the truth of facts appearing in exhibits attached to the complaint. (*Mead v. Sanwa Bank California* (1998) 61 Cal.App.4th 561, 567-568.) If the facts appearing in attached exhibits expressly contradict allegations of the complaint, the facts in the exhibit take precedence. (*Ibid.*)

Dangerous Condition of Public Property. All of Plaintiffs’ claims stem from the allegation of a dangerous condition of public property at the relevant crosswalk. Government Code section 835 generally provides that a public entity is liable for injury caused by a dangerous condition of its property if a plaintiff proves that the property was in a dangerous condition at the time of injury and either that (a) the wrongful or negligent act(s) of the public entity’s employee(s) within the scope of their employment created the condition or (b) the public entity had actual or constructive notice of the dangerous condition sufficiently in advance to have protected against it. (*Metcalf v.*

County of San Joaquin (2008) 42 Cal.4th 1121, 1126.) A dangerous condition is one creating a substantial risk of injury when the property upon which it is found is used with due care in a manner in which it can be reasonably foreseen that it will be used. (*Stathoulis v. City of Montebello* (2008) 164 Cal.App.4th 559, 565.)

The 1AC states a dangerous condition of public property. The fact that an intersection gives pedestrians a “walk” indicator at the same time it gives motorists a green light does not present a substantial risk of injury when the property is used with due care and in a foreseeable manner. Motorists are charged with using due care to simply decline the green light’s invitation when pedestrians are crossing. Vehicle Code section 21950 states this: “The driver of a vehicle shall yield the right-of-way to a pedestrian crossing the roadway within any marked crosswalk or any unmarked crosswalk at an intersection.” That is to say, where the motorist has a right-of-way from a green light, and the pedestrian has a right-of-way from a walk signal, the motorist yields the right-of-way to the pedestrian under the law. A motorist’s failure to observe the law alone does not create a dangerous condition of public property.

However, Plaintiffs add that overgrown vegetation at the incident scene obscured drivers’ visibility and heightened the danger. (1AC at ¶ 15.) Vegetation obscuring visibility can constitute a dangerous condition. (*Bakity v. County of Riverside* (1970) 12 Cal.App.3d 24, 30.) The court notes again that VALLEJO’s evidence of the state of the intersection at the time of the incident is not properly considered on demurrer.

Conclusion. VALLEJO’s demurrer is overruled.

Department 8 is inviting you to a scheduled ZoomGov meeting.

<https://solano-courts-ca-gov.zoomgov.com/j/1619704645?pwd=aUwyYUFUcU5Eazl6SEkrmcRnRLUT09>

Meeting ID: 161 970 4645
Passcode: 675002